

CHAPTER 15.

An Act to remove doubts as to the interpretation of subsection (4) of section five of the Representation of the People Act, 1918. [2nd July 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. For the removal of doubts, it is hereby declared that—

*Interpretation
of s. 5 (4) of
8 Geo. 5. c. 64.*

(a) a person who, by virtue of subsection (4) of section five of the Representation of the People Act, 1918, has at any time become entitled, as a male naval or military voter serving or having served in or in connection with the war, to be registered as a parliamentary elector before attaining full age, continues to be entitled, if otherwise qualified, to be registered as a parliamentary elector before attaining full age, notwithstanding that the service which brings him within the provisions of that section has ceased; and

(b) the expression "service" in the said subsection (4) means service in or in connection with the war.

2. This Act may be cited as the Representation of the People Act, 1920, and the Representation of the People Acts, 1918 and 1919, and this Act may be cited together as the Representation of the People Acts, 1918 to 1920. *Short title.*

CHAPTER 16.

An Act to make provision for the management of the Imperial War Museum and for other purposes connected therewith. [2nd July 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For the purpose of managing the Imperial War Museum (in this Act referred to as "the Museum"), and for the other purposes of this Act, there shall be established a Board of Trustees (in this Act referred to as "the Board"), which shall be a body corporate by the name of "The Trustees of the Imperial War Museum," with perpetual succession and a common seal, and power to acquire and hold land without licence in mortmain.

Establishment and constitution of Board of Trustees of Imperial War Museum.

(2) The Board shall be constituted and their proceedings shall be determined in accordance with the provisions contained in the Schedule to this Act.

(3) The seal of the Board shall be authenticated in the prescribed manner, and any document purporting to be sealed with the said seal so authenticated shall be receivable in evidence of the particulars so stated in that document.

Powers and
duties of
Board.

2. The Board shall have the general management and control of the Museum, and for that purpose may—

- (a) make such rules as they think necessary for securing the due administration of the Museum and preserving the objects collected therein, including rules requiring payment to be made for admission to the Museum;
- (b) with the consent of the Treasury, acquire land for the purposes of the Museum and sell any land vested in them which is not required for that purpose;
- (c) exchange, sell, or otherwise dispose of any duplicate objects belonging to the Museum, and with the consent of the Treasury exchange, sell, or otherwise dispose of any objects belonging to the Museum which the Board consider unfit to be preserved or not to be required for the purposes thereof;
- (d) subject to the consent of the Treasury, apply any money received by them on the exchange, sale, or disposal of any objects, or on the sale of any land, or by way of payment for admission to the Museum, or by way of gift or grant or otherwise, in the purchase of any object which in the opinion of the Board it is desirable to acquire for the Museum or otherwise in defraying any of the expenses of the Board;
- (e) on such terms and subject to such conditions as the Board think fit, lend any objects belonging to the Museum to any gallery, museum, or exhibition approved for the purposes of this provision by the Treasury;
- (f) subject to the consent of the Treasury, appoint officers on such terms and subject to such conditions as the Board think fit;
- (g) subject to the provisions of this Act, do such other things as appear to them necessary or expedient for furthering the interests and increasing the utility of the Museum.

Vesting in
Board of
objects given
to, acquired
for, or trans-
ferred to
Museum.

3.—(1) All objects given,* bequeathed, or otherwise acquired for the purposes of the Museum at any time before the date on which the Board is first constituted, and not disposed of before that date, shall by virtue of this Act vest in the Board, and all objects which are at any subsequent time expressly given or bequeathed to the public, or to the nation, or to the Board for

the purposes of the Museum, or given or bequeathed by words showing an intention that the gifts should enure to or for the benefit of the Museum, or which are acquired by purchase or otherwise for the purposes of the Museum, shall vest in the Board and be held by the Board for the purposes of the Museum.

(2) Where it appears to the Trustees of the British Museum, the Trustees of the National Gallery, or the Board of Education, that any pictures or objects vested in them respectively would more properly form part of the Museum, the Trustees of the British Museum, the Trustees of the National Gallery, or the Board of Education, as the case may be, may, with the consent of the Treasury, transfer those pictures or objects to the Museum, and any pictures or objects so transferred shall vest in the Board and be held by the Board for the purposes of the Museum. The Trustees of the British Museum, the Trustees of the National Gallery, or the Board of Education may at any time, and on such terms, and subject to such conditions as they think fit, lend to the Museum any pictures or other objects vested in them respectively.

4.—(1) There shall be a Director-General of the Museum and a Curator of the Museum who, subject as hereinafter provided, shall be appointed by the Treasury and shall hold office on such terms and subject to such conditions as the Treasury may direct; Staff and expenses.

Provided that the first Director-General and the first Curator shall respectively be the person acting as Director-General and the person acting as Curator of the Museum at the date of the commencement of this Act, and each of those persons shall continue to hold his office on the terms and subject to the conditions on and subject to which he held the office at that date.

(2) The Director-General shall, subject to the directions of the Board, be responsible generally for the management of the Museum, and the Curator shall, subject to the control and direction of the Director-General, be charged with the care of the Museum and of the objects collected there.

(3) The Curator shall act as secretary to the Board.

(4) There shall be paid to the Director-General, the Curator, and any officers of the Board such salaries or remuneration as the Treasury may from time to time determine.

(5) Any expenses incurred by the Board in carrying this Act into effect, including any salaries or remuneration paid to the Director-General, the Curator, or any officers of the Board, shall be defrayed out of moneys provided by Parliament.

5. The provisions of the Charitable Trusts Acts, 1853 to 1914, shall not apply to the Museum. Exemption of Museum from Charitable Trusts Acts.

6.—(1) This Act may be cited as the Imperial War Museum Act, 1920. Short title and interpretation.

(2) In this Act the expression "Imperial War Museum" means the institution established in the year nineteen hundred and seventeen under the name of "the National War Museum" and known at the date of the passing of this Act by the name of the Imperial War Museum, and includes all collections, galleries and museums, wherever situate, which from time to time form or are administered as part of the Imperial War Museum.

SCHEDULE.

Section 1.

CONSTITUTION AND PROCEEDINGS OF BOARD OF TRUSTEES.

(1) The Board shall consist of a President and twenty-four other members, of whom seventeen shall be appointed members and seven ex-officio members.

Of the appointed members—

- (a) eleven shall be persons appointed by the Treasury;
- (b) one shall be a person appointed by the Admiralty;
- (c) one shall be a person appointed by the Secretary of State for War;
- (d) one shall be a person appointed by the Secretary of State for the Colonies;
- (e) one shall be a person appointed by the Secretary of State for India;
- (f) one shall be a person appointed by the Board of Education;
- (g) one shall be a person appointed by the Secretary of State for Air.

The ex-officio members shall consist of the following persons :—

- The First Commissioner of Works;
- The Director and Principal Librarian of the British Museum;
- The High Commissioner for the Dominion of Canada;
- The High Commissioner for the Commonwealth of Australia;
- The High Commissioner for the Dominion of New Zealand;
- The High Commissioner for the Union of South Africa;
- The High Commissioner for Newfoundland.

(2) His Royal Highness the Prince of Wales shall be the first President of the Board, and any subsequent President shall be such person as His Majesty shall nominate in that behalf.

(3) The appointed members of the Board shall hold office for such time as may be specified in their respective appointments.

(4) If any vacancy occurs by death, resignation, effluxion of time, or otherwise, in the office of any appointed member of the Board, the vacancy shall be filled by appointment by the person by whom that member was appointed, and any person appointed to fill a casual vacancy shall hold office so long only as the member in whose place he is appointed would have held office.

(5) Any person ceasing to be an appointed member of the Board shall be eligible for re-appointment.

(6) The powers of the Board may be exercised notwithstanding any vacancy in their number.

(7) The Board may appoint a member of the Board to be Vice-President of the Board, and in the absence of the President the Vice-President shall preside at meetings of the Board.

(8) The Board may, with the consent of the Treasury, make rules—

- (a) for regulating the proceedings (including quorum) of the Board; and
- (b) for enabling the Board to constitute committees and to include as members of committees persons who are not members of the Board; and
- (c) for authorising the delegation to committees of all or any of the powers of the Board (other than the power to buy or sell land) and for regulating the proceedings (including quorum) of committees.

CHAPTER 17.

An Act to consolidate and amend the Law with respect to the increase of rent and recovery of possession of premises in certain cases, and the increase of the rate of interest on, and the calling in of securities on such premises, and for purposes in connection therewith.

[2nd July 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Restrictions on Increase of Rent and Mortgage Interest.

1. Subject to the provisions of this Act, where the rent of any dwelling-house to which this Act applies, or the rate of interest on a mortgage to which this Act applies, has been, since the twenty-fifth day of March nineteen hundred and twenty, or is hereafter, increased, then, if the increased rent or the increased rate of interest exceeds by more than the amount permitted under this Act the standard rent or standard rate of interest, the amount of such excess shall, notwithstanding any agreement to the contrary, be irrecoverable from the tenant or the mortgagor, as the case may be :

Restriction on increasing rent and mortgage interest.

Provided that, where a landlord or mortgagee has increased the rent of any such dwelling-house or the rate of interest on any such mortgage since the said date, but before the passing of this Act, he may cancel such increase and repay any amount paid by virtue thereof, and in that case the rent or rate shall not be deemed to have been increased since that date.

2.—(1) The amount by which the increased rent of a dwelling-house to which this Act applies may exceed the

Permitted increases in rent.